Elvis Nuno
[redacted]

29th July 2020

The Missoula Mayor's Office
Mayor John Engen
435 Ryman st,
Missoula, MT 59802

To whom it may concern,

I am filing this official complaint to your organization regarding a matter that requires immediate and significant investigation and ultimately from my perspective resulting criminal charges be filed against the individuals named herein — Danielle Chard (an ex-girlfriend who was in my life to various degrees since 2000 who also suffers from severe mental illness — borderline personality disorder to be exact) E'Lise Chard (Danielle Chard's estranged sister), and Officer Ethan Smith of Missoula County Police department). This is a matter that would be impossible to emphasize enough how deeply troublesome this matter is. Specifically that this matter extends far beyond the 7 figures of financial damage I have incurred, lasting damage to my 17 year long, $150,000 a year, career as a senior systems and network engineer... But it is far deeper to the point where I, and my parents Ty and Ellie Nuno, have been so psychologically traumatized that we collectively have become, for all intents and purposes, agoraphobic (fearful of leaving our home without a close friend or family member accompanying us), and that me and my parents live in constant fear of Missoula PD, as well as the closely associated and intertwined organization of the Missoula YWCA (which E'Lise Chard works for at an organizational level), and is specifically centered around the conduct of E'Lise Chard, her sister Danielle Chard, and Officer Ethan Smith... Danielle herself in a previous incident that occurred in Edmonds Washington effectively "SWATed" me — not with a SWAT team specifically, but with nearly a dozen police officers convinced I was not only armed, but both homicidal and suicidal, potentially inclined towards "suicide by cop" leading to an incident where I was suddenly and unexpectedly swarmed by armed officers, guns trained on me, shouting "TELL US WHERE YOUR GUN IS!" (of course I was not armed, and most certainly not homicidal, suicidal, or in any state of intending towards anyone or anything any harm) — an incident that I was lucky to survive. Since then E'Lise Chard has on numerous occasions attempted to manufacture similar situations in which Missoula PD were prepared, if not inclined, to act with lethal force against me. Beyond agoraphobia I suffer from *severe* PTSD (from both the literal near death experiences at their hands) to the point I live in deathly fear of these individuals, and that any form of contact or being approached by the police evokes an immediate and deeply biological fear that I will, in that

moment, be executed. From this also stems extreme and deeply life-effecting anxiety and depression, and has by all measures impacted me to the degree I am not capable of living the normal life I once enjoyed.

To first provide a “brief” overview that follows is but a small part of only the most recent events of the past 3 out of (approaching) 6 years that has inflicted such severe trauma that, even with extensive psychological treatment, I will carry all of my life:

To begin I’ll provide a brief summation of the history (or lack there of) that E’Lise and I share:

1.) Our first meeting was when Danielle and I were dating and she introduced us in late 2001. An approximate recollection of the encounter in it’s totality was as follows:

Danielle: Hey E’Lise, this is Elvis.

Me: Hello there!

E’Lise: (briefly glancing at me, while washing dishes) I hope you know I’m obligated to hate anyone my sister dates.

(Awkward silence)

Me: Ok… Well… Nice meeting you…

2.) In February of 2015, 3 months after moving Danielle from Maine to my home in Redmond Washington, Danielle became increasingly verbally and emotionally abusive, eventually escalating to being physically abusive. I became afraid to be in the same home with her, and one night, after being unable to withstand further extreme and unpredictably explosive abuse I demanded Danielle leave my home. Unable to simply throw her out on the street in good conscience, I contacted E’Lise (who had friends in the Seattle area) and explained the situation to her, explaining to her I needed her to help me arrange for some place for Danielle to go where she would be safe, and not simply lost on the streets.

3.) For the following 8 months, after continuing to receive incredibly disturbing and concerning angry calls from Danielle, screaming about matters I was unable to understand or make sense of, I reached out to E’Lise roughly a half dozen times via phone, email, and one written letter (accompanied with a book on borderline personality disorder Danielle suffers from), explaining to her my extreme concern for her sisters consistently deteriorating mental health which I had been an intimately personal witness to for over a decade, but which was then rapidly declining to a level of extreme concern. In these contacts I

desperately urged her E'Lise to reach out to Danielle and attempt to have her seek help, in spite of their estranged relationship after E'Lise disowning Danielle when they were 18-19yo, E'Lise repeatedly repeating Danielle was a "pathological liar" and "terrible and awful person."

4.) Upon moving back to Missoula to escape threats from Danielle, and to care for my Grandfather in the final months of his life, despite every effort to keep my presence in Missoula a secret, E'Lise began stalking me and my whereabouts by repeatedly sending officer Ethan Smith to my parents house claiming that I was harassing her by "sending her text messages in the third person".

Despite not explaining what that meant, how these messages were associated to me, or even providing any content of any such texts — to this day it remains unknown to me if these were indeed texts from any of my friends, past or present, or were merely fabrications from Danielle, E'Lise or associated parties — regardless even the mere suspicion they actually originated from me are circumstantial, at best. Given prior behavior and attempted accusations it would suggest just as much, if not more, that these were merely inventions to propagate a narrative of me having more than the most limited of contact with someone who is otherwise a stranger.

In fact all charging documents in all cases and reports lean *very* heavily on a singular and entirely an unrelated argument and falling out I had with former friend Rebecca Pettit. Furthermore, even in such direct contact from me there exists no suggestion, intentions, or threats to cause anyone physical harm, or to even have *any* in-person contact at all.

Eventually this lead to her confirming my residing in Missoula and the harassment from both Danielle and E'Lise began escalating. Eventually I sent her 3 brief emails demanding her to cease such harassment or I would be forced to take legal action. These e-mails I sent resulted in Ethan Smith sending me a countless barrage of "privacy in communication" citations, which combined with over a years worth of continued telephone and email harassment and threats from Danielle, and fear of further retribution unless I gave in, agree to a "Alfred Plea" admitting no wrongdoing but acknowledging the potential for some legal technicality of a vague law which was at least in part unconstitutional in the state of Montana.

This fully summarizes the totality of all contact or association I have ever had with E'Lise Chard:

* Our 2001 initial meeting where she explained she is "obligated to hate me."

* A phone call securing a home or shelter for her sister after demanding she leave my home in 2015.

* Several phone calls, emails, and a letter expressing extreme concern for her sisters mental health over an 8 month period during 2015.

* 3 very brief emails requesting she cease harassing me and my family after effectively stalking me to learn of my whereabouts in 2017.

If there is any one thing anyone should draw from this is E'Lise and I do not know each other — we have had nothing more than the most minimal association with one another. There are barista's I've had more personal association with, and know more about each other than E'Lise and I.

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Detailing of malicious harassment and third party threats:

Beginning in 2016 E'Lise, estranged from her sister since she was 18, furious that I inadvertently re-introduced and involved Danielle in her life again after she "disowning her" for being a "pathological liar" and "horrible person," she began submitting strange police reports about me (likely at her sisters urging) that never had any bearing on seemingly anything (they were exclusively disregarded by prosecutors and my defense attorneys). E'Lise encourages her (then? Perhaps still current?) boyfriend Steve Leutcheman [investigation into his criminal record will provide the profile of a violent individual with a pattern of harassment] to begin harassing me, ultimately escalating to him threatening my life. I contacted both Missoula and Redmond PD about these matters, which were completely ignored, and I have to take repeated and extreme measures to block all communications from him. E'Lise also encourages a then mutual friend Rebecca Pettit to relay threats to me that if "she ever sees me again she will have me thrown in prison."

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Evidence of Criminal Defamation, as defined by Montana State Law 45-8-212/213:

As literally no investigation, verification, or even questioning if E'Lise knew me in any personal way the evidence of criminal defamation are vast and varied, but it is the escalating nature of them, the sheer volume of them, and the ultimate incalculable damage to me, my life, my family, and my career that qualify them as clearly criminal. More significantly, and indeed infinitely more concerning, is that she did so by both leveraging her position and reputation within the YWCA, her close personal relationship with Officer Ethan Smith, and ultimately involved all of them in her malicious intent to do cause me, and my family, a great deal of harm and duress. And that her involvement with the YWCA and Ethan Smith, in spite of my warnings and attempt to bring her actions to their attention, were ignored — therefore make these organizations equally as liable for her actions — as, without their full and unquestioning support and resources the provided she never would have been able to get away with causing such vast, escalating, and lasting damage and devastation. In fact, had the simple due diligence been asked of "in what way, and for how long have you known this person" the charges her accusations created would never have passed even the most cursory bar of "probable cause," as she was, is, and forever will be a complete stranger. With that being said, I will provide an outline, and specific evidentiary examples of what are by very definition "criminal defamation."

1.) As previously alluded to there exists, while not at my immediate disposal, numerous examples of E'Lise sending Seattle and Edmonds police departments copies of communications I had as a result of the harassment of her (past and/or present) boyfriend Steve Leutcheman which could only be considered random, at best, or a malicious attempt to cause legal harm, at worst [let it also be noted the legal matters she attempted to interfere with in Seattle were ultimately dismissed due to a complete lack of evidence, just as the most recent set of chargers in Missoula Superior court resulted in].

2.) Beginning with her stalking and harassment that began when I returned to Missoula, the instigating reason she provided Officer Ethan Smith to begin his harassment of me and my family, were for supposed "text messages written in the third person." Not only am I unsure of what exactly that means, Officer Smith never produced any such examples for me, never ended up writing reports regarding any potential investigation until months after the fact, and in at least one example the prosecution in my case regarding the "privacy in communications" matter was found and cited for suppressing reports of Officer Smiths due to their sloppy and dramatically delayed production of them. In fact all supposed contacts, other than the three brief non-threatening emails I sent directly to E'Lise Chard, were never produced, tied to me in any way, and are just as likely what I suspect to be written by either E'Lise or

Danielle Chard in furtherance of an established pattern of obsessively seeking to carry out the repeated threat to “see me thrown in prison.”

3.) In immediate response to the formal complaint I sent to the YWCA, and subsequent posting of it on google (a clear example of 1st amendment protected free speech), E’Lise Chard filed for a restraining order against me. Of particular note is the letter she attached to the request for this order of protection, which with the sole exception of her mentioned me sending said letter, every word of the letter was a outlandish work of fiction, claiming I have an extensive criminal drug history that “all the police and judges know about” (which I don’t), and goes on to paint a vividly graphic and deeply personal assessment of not only of my mental health, that “I believe E’Lise is standing between Danielle and I being together”, that I “threatened to have her children taken away,” and of my intentions and plans to physically harm her, and the staff of the YWCA (among other colorful, outlandish, and patently absurd claims that are entirely divorced from reality). If she had deliberately set out to write a more transparently dramatically dishonest and fictional accounting of things (which by all means seems to have been her aim) she would be hard pressed to do a better job.

On the contrary, any notion I would want to resume any association to her sister is insane at best (it should not need to be repeated that I was forced to throw her out of my home due to extreme and frightening abuse, that continued even after that event, and in fact continues to this day), I have never produced any threats or indications of committing any violent act towards her, her children, the YWCA, or anyone for that matter. I quite obviously want literally nothing to do with either of them, as I suffer from severe PTSD and agoraphobia (due to the years of threats, harassment, and trauma suffered at the hands of Danielle, E’Lise, and their associates), and I rarely leave my home except when accompanied by family or trusted friends. Quite obviously, despite her claims, it would in fact be impossible for me to know anything about her living situation, work habits, or whereabouts were I to even remotely care to (which I very much do not).

The letter that I sent the YWCA was written as polite as I possibly could have been, merely asking E’Lise’s activities cease to be done using the resources of the YWCA, and as a gesture of good will and support of the YWCA’s stated mission provided a $400 donation to their organization. But of course in her police report about the letter, she went out of her way to claim that this made her “fear for her life” (which is a statement divorced from any form of logic or reason) — in fact very specific attention should be paid to the fact that the sending of said incredibly polite letter and $400 donation was the singular inciting of these dramatic and entirely fictitious accusations of her certain fear that I had violent intent to cause her / her children / the YWCA employees harm. That in fact none of these things delusional notions were never

mentioned in the year+ prior to her stalking me in attempt to find my exact whereabouts. If this alone doesn't suggest more than sufficient suspicion of her malicious intentions to damage my life, I don't know what else would.

4.) Continuing to be true to form of exactly the behavior my complaint to the YWCA described, *immediately* following this OP hearing E'Lise filed *another* police report claiming that while waiting to be heard by the judge (when I was actually stepping out to smoke) that I was "repeatedly calling her." Of what possible point I could have in doing such a thing, particularly as I don't know her phone number, is beyond my comprehension. But not only was she not asked to provide any such evidence of receiving *any* calls during the OP hearing, during our time in front of Judge Warren he asked her not once, but TWICE, if I had made any attempts to contact her besides the 3 emails I had sent over a year prior, both times she answered a resounding "NO."

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Evidence of police malfeasance, abuse of power, and targeting me well beyond reason as the direct result of E'Lise's successful defamation campaign:

1.) After the OP hearing, as Judge Warren made it abundantly clear that the sending of my email and google posting violated no law, and were clear examples of 1st amendment protected free speech. Yet still I was initially charged with misdemeanor stalking and criminal defamation, the judge at my initial arraignment REFUSED to believe Judge Warren assessed my letter and google posting to be protected free speech, and I was arrested with a $10,000 bond.

2.) Following this my father filed another complaint regarding Officer Ethan Smith's conduct, citing E'Lise and Ethan's clearly close personal relationship, and that *all* matters were being fueled exclusively by him. His commanding officer immediately saw the obvious appearance of impropriety, and removed him from the case.

3.) *DIRECTLY* following this matters escalated beyond anything I could have expected (without any reasonable doubt influenced by Ethan Smith insisting to the new detective that, despite lacking any actual evidence, that I was a imminent danger to the community) using the fully unfounded and outrageous

claim that I was a threat to E'Lise's children a search warrant for my home was attained, new charges of one misdemeanor and TWO felony stalking charges were issued, and directly in the middle of a work meeting my home was raided, all of my work equipment seized, and a $50,000 bail was issued (the unconstitutionality of bail being set that high in the first place is another matter entirely).

4.) Following me bailing out for the second time, I made every attempt to reach out to the public defenders office and otherwise determine when my arraignment would be. However this was kept secret from me, resulting in me "missing" my bail hearing, and being woken up from a dead sleep by four officers with tasers pointed at me demanding I produce any weapons I was hiding. With barely the chance to put pants on I was taken to jail and an attempt to raise my bail to $100,000 was made.

5.) Most recently E'Lise Chard encouraged a personal friend of hers, Tyleen (someone unknown to me, whom I have never met) to post a message on the Facebook page of my non-profit organization working to facilitate rural communities with broadband and telemedicine services with the message "the guy who owns this it is a stalker and a woman beater." When I attempted to report this incident to the Missoula Police department I was cornered in a hallway by two officers, first ridiculed and laughed at, then yelled at, then when attempting to reach for my phone to provide them with a screenshot of the message they yelled "DON'T PUT YOUR HANDS IN YOUR POCKET!" while one of the officers unclipped the latch on his sidearm and placed his hand on his gun, ready to draw on me. After this incredibly frightening and troubling incident where these officers only begrudgingly took a report from me, I took the initiative to investigate the identity and whereabouts of this individual myself. After finding they resided in Dillon, MT I called their local Police Department. I was connected to an officer Ian Turnes — he has immediately took my issue very seriously, as well as recognized Tyleen as someone with a pattern of similarly harassing people, and went above and beyond the call of duty to not only locate her (which in and of itself was a difficulty, as she made every effort to not be found), but approached her and ensured that she took this inaccurate and offensive message down.

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Before I continue I want to describe this arraignment in greater detail:

The man arraigned directly in front of me was being arraigned on a domestic violence assault and attempted homicide charge where he had *choked* his wife with a *chain* while holding her at *gunpoint*. Not only was his bail

$15,000 (a far cry from my $100,000), but very special attention was made to assuring that he would keep his job, and that in no way would his charges threaten his employment.

Then came me: the prosecutor described me as the most violent dangerous criminal to come through their jail in recent history. That I was not only a danger to E'Lise, but to the community at large. At no point was any question or consideration been given to my employment. And what was my *actual* offense at this point? Sending a polite letter with a $400 donation, and posting the contents of the letter on google... However luck was on my side, as my lawyer made it abundantly clear that not only was I completely unaware I missed my arraignment, but there wasn't even any evidence I had *any* physical contact with this person in *many* years, and I was released... But not without being fixed with a GPS bracelet.

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5.) On my way home from jail, my father driving, me dehydrated and starved for two from being incapable of eating the literal unstomachable slop I wouldn't in good conscience feed my cat, while reading my release paperwork and unbeknownst to my father we made the smallest of possible mistakes. Within the 1500ft radius there was a less than 50ft stretch of Phillips street that was the "exclusion zone" from the YWCA. While I didn't notice it at the time, and as we were merely taking the shortest route from point A (the jail) to point B (home) we crossed this insignificant line. Upon getting home my pretrial services Officer called me back. On our way back i was prescient enough to realize we should avoid this literal less than half a block of Phillips. An officer was there, my dad explained the situation, explained he wanted to come into the office with me in the first place to see where we could and could not go, but the pretrial agent denied him entry. The officer there understood it as nothing more than the most innocent of mistakes, but wrote a citation anyway "because he had to" (he didn't, but he did). A full week later the prosecutor made a motion to *revoke* my bail entirely. My lawyer made every effort to schedule a trial date for this motion, but was stonewalled by the prosecutors office. Then one day I got a call from my pre-trial Officer to "come in and answer some questions." I repeatedly asked him if that was all this was about and he assured me I would be in-and-out. Of course upon arrival there were two officers there to take me to jail. For two days I sat waiting for them to schedule a trial. The prosecutors motion was unsuccessful. However what he *WAS* successful in doing was cause me to lose my job. A $150,000 contract. Gone. Because I repeatedly would disappear off the face of the planet with no rhyme or reason. Even with my boss being sympathetic to my situation, the client demanded I be removed from the contract.

* Had I not been arrested so many times.

* Had I not had my home raided in the middle of work and all my work equipment seized.

* Had the prosecutor worked with my attorney in scheduling a trial date to hear his bail revocation motion without arresting me.

* Had the pre-trial services officer not lied to me and told me what was going on, so I could have given my work a heads up I would be unavailable a few days.

* Had these charges that never had an ounce of credibility to them never been filed.

* Had a detective or prosecutor just asked the simple question “in what way and for how long have you personally known this person?”

Had any or all of these things been done such severe damage to my life and my career could have been avoided, and such extreme trauma not been inflicted on me and my family.

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In conclusion, to review:

1.) I wrote a polite letter with a $400 donation

2.) I posted the contents of the letter for the public to read.

Both of these acts were clearly 1st amendment protected speech, as declared in the very beginning by Judge Warren. There was never even the slightest sign or reasonable suspicion that I was a threat or danger to anyone. Nine months of GPS monitoring provided an empirical record of my PTSD, extreme anxiety, clinical depression, and agoraphobia diagnosis (the direct result of all these continually repeated abusive and malicious actions taken against me). My only desire was for the harassment to simply stop, and that desire was made repeatedly and abundantly clear. What happened instead was a dramatically disproportionate reaction that defies any reason or justification.

That result was, but not limited to, the following:

* 4 sets of charges dropped and refiled until an ultimate dismissal.

* 6 total arrests.

* A $10,000 bail.

* A $50,000 bail.

* Tens of thousands of dollars in legal fees.

* Untold, incalculable, unspeakable trauma inflicted upon me and my family.

* The loss of a $150,000 contract.

* Just in the last month I had three interviews for similar contracts, all paying in similar ranges. I received offers for employment on all three.

When they ran a background check on me, I lost each and every one of them.

A career I have spent virtually my entire life building is now gone.

All because of the accusations of a stranger, and three very powerful organizations (the YWCA, Missoula PD, and the Missoula Prosecutors Office) that never happened even asked the most basic of questions, or the most cursory of investigations.

What E'Lise Chard has done is the very definition of criminal defamation, and the organizations that showed her unquestioning faith in her honesty without doing the most basic of investigations first, without ever truly establishing probable cause, all aided and abetted her in her crimes.

It is for these reasons, and many more I could happily produce (such as families who read my google post and reached out to me describing similar such malicious and deliberately dishonest targeting by E'Lise), I am demanding a full investigation into E'Lise Chard, the officers involved (Ethan Smith being chief among them), the failure of the prosecutors office to do their due diligence, and demand that criminal defamation charges be pursued and prosecuted, along with any other criminal activity that is found in the due course of said investigation.

Further Addendum and Details of above mentioned incidents:

I have received numerous threats from Danielle Chard, E'Lise Chard, Steve Leutchman (E'Lise's current/ex boyfriend), and Rebecca Petit that Danielle and E'Lise have the full intention of seeing me "dead of in prison."

Danielle Chard, in an incident that occurred in Edmonds Washington, nearly made good on that threat when effectively "SWAT-ing" me after I attempted to confront her about a repeated series of frightening and concerning raging and screaming phone calls I would repeatedly receive from her. On the day I confronted her she became violently hostile, attempted to assault me, so I left, after which she notified the police that I had threatened to (in her words) "deliver a final death blow" and that I was armed and intended on murdering her and then myself. The police, believing I was in possession of a firearm and

in the state of mind of being homicidal and suicidal, tracked me down, surrounded by 6 cop cars and roughly 12 police with guns drawn on me, repeatedly screaming at me “TELL US WHERE YOUR GUN IS! TELL US WHERE YOUR GUN IS!” Where it not for the immediate state of confusion/terror/etc. this put me in, effectively short-circuiting any biological flight-or-fight response I froze, which is beyond certainty the only reason I am still alive today, as the officers were fully convinced I was prepared to commit “suicide by cop.”

This type of incident has been repeated in Missoula, as E’Lise Chard has convinced a police officer which she has very close personal relationship with, Officer Ethan Smith, that I intend to murder E’Lise, her children, and the entirety of the YWCA staff. Since her convincing Ethan Smith I have had more incidents than I can immediately count of police barging into my home and holding me at gun point (even on one occasion early in the morning when I was asleep in bed), up to and including a recent incident where I was trying to report an incident of harassment by a friend of E’Lise Chard where two officers cornered me in a hallway and one pulled his gun on me. It is abundantly clear they are doing everything to make good on manufacturing a situation where I would either be charged with so many felonies I would spend life in prison, or create a situation where the police would feel justified in using lethal force against me.

For these reasons, and more that can be provided upon request, I am both begging and demanding that the Missoula Police Department is investigated, and the appropriate action are taken file the necessary criminal charges against the three primary offending individuals be filed. Until this occurs neither I, nor my parents, will be afforded any safety or protection from further aggression or retaliation. These individuals will not cease in their stated agenda to see me “dead or in prison” by their own deliberate dishonesty and weaponization of the legal system until they are stopped and held accountable for their actions.

Sincerely,

Elvis Nuno

Ty Nuno

Ellie Nuno